IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

ITEM No. 142
(CAA)-141(PB)/2018

IN THE MATTER OF:
Times Content Ltd. and Times Internet Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 03.04.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	Mr. Abhishek Sethi, Adv.
For the IT:	Mr. Deepak Anand & Mr. Aayushmaan, Advs.
For the OL	Ms. Swati Koshal, Company Prosecutor

ORDER

Vide affidavit dated 20.02.2019, an undertaking has been filed under Clause 16 of the scheme of amalgamation, that the transferor and transferee company undertake that all tax liabilities, claims etc. relating to the tax matters pertaining to the transferor company i.e. Times Content Limited, shall be continued against the transferee company i.e. Times Internet Limited.

The transferor company according to the scheme, amalgamates with the transferee company. No recovery could be effected from the transferor company. Therefore, the objection of the Income Tax

Department is only as regard an undertaking required to be filed by transferee company. The proper affidavit must be filed within a week with a copy in advance to the counsel opposite.

List on 22.04.2019.

Sd/-

(M. M. KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

Deepak – 03.04.2019